Zimbabwe

Bees Act

Chapter 19:02

Legislation as at 31 December 2016

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Zimbabwe

Bees Act
Chapter 19:02

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AN ACT to provide for the control of disease in bees and the conservation of bees found in the wild; to regulate bee-keeping; and to provide for matters incidental to or connected with the foregoing.

Part I – Preliminary

1. Short title

This Act may be cited as the Bees Act *[Chapter 19:02]*.

2. Interpretation

In this Act—

"**alienated land**" means land which is not forest land, parks and wild life land or Communal Land, and which is—

(a) private land; or

(b) land vested in a local authority; or

(c) State land held under an agreement of purchase or lease;

"**apiary**" means a hive or the aggregate number of hives in use by a bee-keeper;

"**apiculturist**" means a person employed in the Public Service as an apiculturist;

"**appliance**" means any fitting, utensil, container, apparatus or implement, other than a hive, that is or has been used in bee-keeping or in handling or storing bees, honeycomb, bees-wax or honey or other products of a hive;

"**appropriate authority**", in relation to any land, means—

(a) in the case of alienated land—

(i) the owner thereof; or

(ii) where the land is held under an agreement of purchase or lease, the purchaser or lessee unless the agreement otherwise provides;

and includes any person appointed to be an appropriate authority for the land by such owner, purchaser or lessee, as the case may be;

(b) in the case of unalienated land—

(i) which is parks and wild life land or other land not referred to in subparagraphs (ii) and (iii), the Director;

(ii) which is forest land, the Forestry Commission;

(iii) which is an area of Communal Land in respect of which the Minister has in terms of section nineteen appointed a rural district council to be the appropriate authority, that rural district council;

(iv) which is an area of Communal Land not referred to in subparagraph (iii), the Minister;

"**bee**" means any honey-bee of the species *Apis mellifera*;

"**bee-keeper**" means any person who keeps bees;

"**bees-wax**" means raw bees-wax produced from bees by a bee-keeper but not bees-wax which has been commercially processed;

"**conservation committee**" means—

(a) a conservation committee appointed for an intensive conservation area in terms of the Natural Resources Act *[Chapter 20:13]*; or

(b) a rural district council declared to be a conservation committee in terms of the Rural District Councils Act *[Chapter 29:13]*;

"**declared disease area**" means an area of land declared to be a declared disease area in terms of section three;

"**Director**" means the Director of National Parks and Wild Life Management;

"**disease**" means—

(a) any disease affecting bees, honeycomb, bees-wax or honey which is caused by or consists of the presence of any insect, fungus, bacteria or virus;

(b) any disease or symptom affecting bees, honeycomb, bees-wax or honey which is declared to be a disease in terms of section eighteen;

"**herbicide**" means any substance which is manufactured for the purpose of killing non-woody plants and is to be applied, either dry or wet, mechanically under pressure;

"**honorary officer**" means a person appointed as an honorary officer in terms of section twenty-five;

"**hive**" means any receptacle housing bees or which has housed bees;

"**insecticide**" means any substance which is manufactured for the purpose of killing insects and is to be applied, either dry or wet, mechanically under pressure;

"**inspector**" means any person designated as an inspector in terms of section twenty;

"**local authority**" means a municipal council, town council, local board or rural district council;

"**Minister**" means the Minister of Environment and Tourism or any other Minister to whom the President may, from time to time, assign the administration of this Act;

"**natural hive**" means a hive occurring naturally in the wild which is occupied by bees;

"**occupier**", in relation to land, means the person in lawful occupation of the land who has the right to exercise general control over such land and resides thereon;

"**sell**" includes barter, exchange, hawk, offer or expose for sale;

"**State land**" means land vested in the President other than Communal Land;

"**unalienated land**" means—

(a) forest land; or

(b) parks and wild life land; or

(c) Communal Land; or

(d) other land which is not referred to in paragraphs (a), (b) or (c) and which is not —

(i) private land; or

(ii) land vested in a local authority; or

(iii) State land held under an agreement of purchase or lease.

Part II – Control of disease

3. Declared disease area

(1) The Minister may, by statutory instrument —

(a) declare any area in which any disease exists to be a declared disease area;

(b) prohibit, either absolutely or subject to conditions, the sending or bringing of bees or appliances into any declared disease area, or the sending or removal from a declared disease area into any other area of bees, hives, honeycomb, bees-wax, honey or appliances;

(c) require bee-keepers within a declared disease area to register in the prescribed form and manner.

(2) The Minister may, by statutory instrument, amend or revoke any notice made in terms of subsection (1).

(3) Any person who contravenes any provision of a notice made in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

4. Power to destroy diseased bees

(1) If an apiculturist certifies to the Minister in writing that any bees are diseased and, in his opinion, are a source of danger to other bees and ought to be destroyed, the Minister may, by order in writing, direct the bee-keeper of those bees to destroy them in such manner and within such period as may be specified in the order.

(2) If a person to whom an order in terms of subsection (1) has been given fails to destroy the bees concerned in compliance with such order, an inspector may destroy the bees on behalf of and at the expense of the bee-keeper of the bees.

(3) Any person who fails to comply with an order given to him in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

5. Hives, etc., liable to spread disease to be disinfected

(1) Where an inspector is of the opinion that any hive, honeycomb, bees-wax, honey or appliance or any other article or vehicle which is or has been used in connection with bee-keeping is liable to spread disease, he may, by order in writing, direct the person in charge thereof to clean and disinfect the thing concerned in such manner and within such period as may be specified in the order.

(2) If an apiculturist certifies to the Minister in writing that any thing, other than a vehicle, mentioned in subsection (1) is, in his opinion, a source of danger to other bees and ought to be destroyed, the

Minister may, by order in writing, direct the person in charge of such thing to destroy it in such manner and within such period as may be specified in the order.

(3) If a person to whom an order in terms of subsection (1) or (2) has been given fails to comply with such order, an inspector may disinfect or destroy the thing concerned in accordance with the order on behalf of and at the expense of the person in charge of the thing.

(4) Any person who fails to comply with an order given to him in terms of subsection (1) or (2) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

6. Notice to be given where bees diseased, etc.

(1) Where, in any place where bees are kept, any bees are diseased or any hive in such place is infected with disease, the bee-keeper of the bees or person in charge of the bees or hive shall give notice of the fact in the prescribed form and manner to an apiculturist forthwith upon discovering such fact.

(2) No bee-keeper of any bees or person in charge of any bees, hive, honeycomb, bees-wax or appliance shall remove, sell, give away or otherwise deal with the bees, hive, honeycomb, bees-wax, honey or appliance from any place which is affected by or liable to spread a disease except to dispose of the bees, hive, honeycomb, bees-wax or appliance in a manner approved of by an inspector.

(3) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

7. Infected hives, appliances, honey, etc., not to be exposed to bees

(1) Any person who exposes in such manner as will allow access thereto by bees—

(a) any hive infected with disease; or

(b) any beeswax, appliance or other article which is infected with disease or has been taken from or used in connection with any hive infected with disease;

until after the same has been sterilized so as to remove any infection shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

(2) Any person who exposes in such manner as will allow access thereto by bees any honey which—

(a) is infected with disease; or

(b) has been exposed to infection with disease; or

(c) is the produce of a hive which, within the period of six months preceding the extraction of the honey, has been kept within three kilometres of a hive infected with disease;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

8. Power of inspector to prohibit removal of bees, etc., from place where diseased bees, etc., are to be kept

(1) Where an inspector is of the opinion that in any place where bees are kept any bees are diseased or any hive, honeycomb, bees-wax, honey or appliance is infected with disease, he may, by order in writing, prohibit the bee-keeper of the bees or person in charge of the bees, hive, honeycomb, bees-wax, honey or appliance from removing or allowing the removal of such bees, hive, honeycomb, bees-wax, honey or appliance from such place to any other place until such disease has been shown, to the satisfaction of an inspector, to have been eradicated.

(2) Any person to whom an order in terms of subsection (1) has been given who removes or allows to be removed any thing in contravention of such order shall be guilty of an offence and liable to a fine not exceeding level six or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

Part III – Conservation of bees found in the wild

9. Restriction on removal of bees, etc., found in natural hives

(1) Any person who, without reasonable excuse, the proof whereof lies on him—

(a) removes, disturbs or destroys any bees, honeycomb, bees-wax or honey found in any natural hive on any land shall be guilty of an offence unless it is shown that he had the permission of the appropriate authority for the land; or

(b) fails to comply with the conditions of any permission granted to him by the appropriate authority for the land to remove, disturb or destroy any bees, honeycomb, bees-wax or honey found in any natural hive on such land, shall be guilty of an offence.

(1a) Any person who is guilty of an offence in terms of paragraph (a) or (b) of subsection (1) shall be liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22 of 2001]

(2) Subject to this Act, an appropriate authority for any land may—

(a) remove, disturb or destroy any bees, honeycomb, bees-wax or honey found in any natural hive on the land;

(b) grant any person permission, subject to such conditions as the appropriate authority may consider fit to impose, allowing that person or any other person or any class of persons to remove or destroy any bees, honeycomb, bees-wax or honey found in any natural hive on the land or any part of the land:

Provided that where any conditions are imposed they shall be in writing;

(c) cancel or amend any permission granted in terms of paragraph (b).

10. Sale of honeycomb, etc., from natural hive controlled

(1) Any person who sells any honeycomb, bees-wax or honey removed from any natural hive found on any land shall be guilty of an offence unless it has been lawfully removed, the proof whereof lies on such person.

(2) Any person who is guilty of an offence in terms of subsection (1) shall be liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22 of 2001]

Part IV – Bee-keeping

11. Interpretation of terms in Part II

"**application of insecticides to land**" does not include the use of insecticides in any dwelling, dairy, shed, barn or similar building or structure on the land;

"**specified area**" means an area declared to be a specified area in terms of section fourteen.

12. Prohibited apiary sites

(1) If an apiculturist certifies in writing to the Minister that in his opinion—

(a) any site is or has become unsuitable for bee-keeping; or

(b) the keeping of bees on any site is detrimental to the public interest;

the Minister may, by statutory instrument —

(i) prohibit the establishment of any apiaries on the site;

(ii) specify the periods within which any bee-keeper, who on or before the date of publication of the notice has established any apiary on the site, shall remove such apiary.

(2) If any person establishes or fails to remove any apiary in contravention of any notice made in terms of subsection (1), an inspector may, on behalf of and at the expense of the bee-keeper concerned, remove the apiary concerned to any other site indicated by the bee-keeper or, if none is so indicated, dispose of the apiary.

(3) The Minister may, by statutory instrument, amend or revoke any notice made in terms of subsection (1).

(4) Any person who contravenes a notice made in terms of subsection (1) shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

13. Abandoned bees and hives

If an inspector is satisfied that any bees, hives or appliances have been abandoned or are neglected, he may take possession of them and shall dispose of them in the manner prescribed.

14. Declaration of specified areas

(1) If a conservation committee considers that on any alienated land within its area insecticides or herbicides are being used on a scale which is likely to be injurious to bees in the area or, through injury to bees, prejudicial to crop production in the area, it may recommend to the Natural Resources Board that its area or any part thereof be declared a specified area.

(2) On receipt of a recommendation in terms of subsection (1) the Natural Resources Board may, after consideration thereof—

(a) remit the matter to the conservation committee concerned for further consideration; or

(b) reject the recommendation and inform the conservation committee concerned of such rejection; or

(c) approve the recommendation and submit it to the Minister.

(3) On receipt of a recommendation submitted to him in terms of paragraph (c) of subsection (2) the Minister may—

(a) remit the matter to the Natural Resources Board for further consideration; or

(b) reject the recommendation and inform the Natural Resources Board accordingly; or

(c) by statutory instrument, declare the area concerned to be a specified area and cause notice thereof to be given in a newspaper circulating in that area.

(4) The Minister may, by statutory instrument, amend or revoke any notice made in terms of paragraph (c) of subsection (3) and shall cause notice thereof to be given in a newspaper circulating in the area concerned.

15. Bee-keeper may require occupiers to give notice of intention to use insecticides or herbicides

(1) A bee-keeper whose apiary is situated in any specified area may, by notice in writing, inform the occupier of any situated in such specified area and within a distance of five kilometres of the site on which his apiary is established that—

(a) he is a bee-keeper; and

(b) he requires to be given at least forty-eight hours' notice of intended applications of any insecticide or herbicide to such occupier's land, a description of the insecticide or herbicide and the means by which it is likely to be applied.

(2) A notice referred to in subsection (1) shall be delivered to the occupier personally or be sent by registered post to his last known address.

(3) A bee-keeper who gives notice in terms of subsection (1) shall submit a copy of such notice to the conservation committee for the area in which his apiary and the specified area concerned are situated.

(4) Any person who contravenes subsection (3) shall be guilty of an offence and liable to a fine not exceeding level three or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

16. Occupiers to give notice of use of insecticides or herbicides

(1) An occupier of land who receives notice in terms of section fifteen shall give at least forty-eight hours' notice to the bee-keeper concerned of any intended application of insecticides or herbicides to his land, a description of the insecticide or herbicide and the means by which the insecticide or herbicide will be applied.

(2) Notice by an occupier of land of any programme of intended applications of insecticides or herbicides to his land during the period of twelve months following the date of the giving of the notice shall be regarded as notice in terms of subsection (1) of any such applications made in accordance with such programme.

(3) A notice referred to in subsection (1) shall be given to the bee-keeper personally or be sent by registered post to his last known address.

(4) An occupier of land who gives notice in terms of subsection (1) shall keep a record of the date and means by which he gave the notice and shall, within forty-eight hours of giving such notice, advise

the conservation committee for the area concerned, in writing, that he has given such notice and the means by which he gave it.

(5) Any person who contravenes subsection (1) or (4) shall be guilty of an offence and liable to a fine not exceeding level three or to imprisonment for a period not exceeding one month or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

17. Unauthorized removal of bees, etc., from apiaries

(1) Any person who, without reasonable excuse, the proof whereof lies on him—

(a) removes any bees, honey, honeycomb, bees-wax, honey or appliance from any apiary; or

(b) wilfully disturbs any bees in any apiary; or

(c) destroys any bees in an apiary;

shall be guilty of an offence unless it is shown that he had the permission of the bee-keeper in charge of such apiary.

(2) Any person who is guilty of an offence in terms of subsection (1) shall be liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection inserted by section 4 of Act 22 of 2001]

Part V – General

18. Declaration of diseases

(1) The Minister may, by statutory instrument, declare any disease or symptom affecting bees, honeycomb, bees-wax or honey to be a disease for the purposes of this Act, whether or not caused by or consisting of the presence of any insect, fungus, bacteria or virus.

(2) The Minister may, by statutory instrument, amend or revoke any notice made in terms of subsection (1).

19. Appointment of appropriate authority

(1) The Minister may, by statutory instrument, appoint a rural district council to be the appropriate authority for such area of Communal Land as may be specified in such notice and may in like manner amend or revoke such notice.

(2) Where, by virtue of a notice made in terms of subsection (1), the appropriate authority for any area of Communal Land is changed, any permission granted by the previous appropriate authority which was of force and effect immediately before the date of commencement of the notice shall remain of force and effect and be subject to amendment or cancellation as if it had been granted by the new appropriate authority.

20. Appointment of inspectors

(1) The Minister may designate the persons or classes of persons employed in the Public Service who shall be inspectors for the purpose of exercising the powers and performing the duties conferred and imposed on inspectors in terms of this Act:

Provided that the Minister shall not designate persons employed in any Ministry the administration of which has not been assigned to him without the consent of the Minister to whom the administration of that Ministry has been assigned.

(2) An inspector shall be furnished with a certificate signed by or on behalf of the Minister which shall state that the holder has been designated as an inspector for the purposes of this Act.

(3) An inspector exercising any power or performing any duty conferred or imposed upon him by this Act or about to do so shall, on demand by any person concerned, produce the certificate issued to him in terms of subsection (2).

21. Powers of entry and inspection by inspectors

(1) Subject to subsection (2) an inspector may at any reasonable time—

(a) enter and inspect any premises or place upon or on which bees, hives, honeycomb, bees-wax, honey or appliances are or are suspected by him to be and may inspect any bees, hives, honeycomb, bees-wax, honey or appliances or any articles used in connection therewith;

(b) inspect any vehicle used or suspected by him to have been used for the transportation of bees, hives, honey-comb, bees-wax, honey or any articles used in connection with bee-keeping:

Provided that nothing in this paragraph contained shall be construed as authorizing an inspector to stop any vehicle travelling on any road for the purpose of carrying out an inspection;

(c) require any person in charge of bees to answer any question relating to those bees:

Provided that no person shall be required to answer any question put to him in terms of this paragraph if he would be entitled to decline to answer that question were he a witness giving evidence in a court of law.

(2) No dwelling-house shall be entered in terms of subsection (1) unless the inspector concerned has reasonable grounds for believing that evidence relating to an offence in terms of this Act may be found therein and informs the occupant of his reasons for entry.

(3) An inspector may, for the purposes of any inspection made in terms of subsection (1), remove for examination or analysis any bees, hives, honeycomb, bees-wax, honey or appliances or portions or samples thereof:

Provided that—

(i) the inspector shall issue a receipt for anything so removed to the person in charge of the thing so removed or, if he cannot be ascertained, to any occupant of the premises from which it is removed;

(ii) where the method of any such removal is prescribed, such removal shall be effected in accordance with the prescribed method.

22. Evidence

In any prosecution in respect of an offence in terms of this Act any prescribed record, book or document kept in terms of this Act or a copy of any order purporting to be made by the Minister or an inspector in terms of this Act shall be *prima facie* evidence of the facts recorded therein or of the fact that such order was made upon its production by the person in whose custody it is.

23. Recovery of expense incurred by inspectors

(1) Any expense incurred in connection with the exercise by an inspector of his powers and duties in terms of this Act on behalf of any other person shall be a debt due to the State and may be recovered from that person by the Minister in any court of competent jurisdiction:

Provided that the Minister may, if in his opinion there is reasonable cause, waive all or part of such debt.

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(2) A certificate purporting to be signed by the Secretary of the Ministry for which the Minister is responsible, as to the amount of the expense incurred in connection with the exercise by an inspector of his powers and duties in terms of this Act shall be *prima facie* evidence that that amount was incurred pursuant to this Act.

24. Court may order payment of compensation

(1) When a person is convicted of an offence specified in section seventeen or of any attempt, conspiracy or incitement to commit such an offence, the court may, in addition to any penalty which it may impose on the person convicted, order him to pay as compensation to the bee-keeper concerned such amount as may, subject to subsection (2), be specified by the court if—

(a) the court is satisfied that the bee-keeper has suffered a loss by virtue of the offence; and

(b) application has not been made in terms of the Criminal Procedure and Evidence Act *[Chapter 9:07]* for compensation in respect of the offence.

(2) The amount specified in an order made in terms of subsection (1) shall not exceed—

(a) in the case where the bees, honeycomb, bees-wax, honey or appliances have not been recovered, an amount equal to their market value at the time of their removal;

(b) in the case where the bees, honeycomb, bees-wax, honey or appliances have been recovered, an amount equal to the difference between the market value thereof at the time of the offence and the value thereof when they were recovered;

(c) in the case where the bees, honeycomb, bees-wax, honey or appliances were not removed, an amount equal to the difference between the market value thereof at the time of the offence and the value thereof immediately after the offence;

less in each case the amount of any compensation which may have been paid to the bee-keeper by or on behalf of the person convicted.

(3) The amount specified in an order made in terms of this section may be recovered in the manner provided by section 348 of the Criminal Procedure and Evidence Act *[Chapter 9:07]* and any amount so recovered shall be paid to the bee-keeper concerned subject to the said bee-keeper concerned giving security *de restituendo* in case the judgment of the court which made the order is reversed on appeal or review.

(4) Where an order is made in terms of this section upon two or more persons the liability thereunder shall be joint and several.

(5) If a court makes an order in terms of this section it shall, at the same time, sentence the person convicted to a term of imprisonment not exceeding six months in default of payment of the amount thereof or recovery of the amount thereof in terms of subsection (3) and a sentence of imprisonment imposed in terms of this subsection shall be served after any sentence of imprisonment which may have been imposed in respect of the offence.

25. Honorary officers

(1) The Minister may appoint fit and proper persons to be honorary officers to assist him in the carrying out of this Act.

(2) An honorary officer shall have such powers and duties as may be prescribed:

Provided that such powers shall not be greater than the powers conferred upon an inspector by this Act.

(3) An honorary officer shall hold office at the pleasure of the Minister.

(4) An honorary officer shall be furnished with a certificate signed by or on behalf of the Minister which shall state that the holder has been appointed as an honorary officer for the purposes of this Act.

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(5) An honorary officer exercising any power or performing any duty conferred or imposed upon him by this Act or about to do so shall, on demand by any person concerned, produce the certificate issued to him in terms of subsection (4).

26. Personation

Any person who—

(a) falsely represents himself to be an inspector or honorary officer; or

(b) without lawful excuse, the proof whereof lies on him, displays any certificate or other document of appointment authorized or required in terms of this Act or so nearly resembling such certificate or document as to be likely to deceive;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

27. Obstruction

Any person who—

(a) hinders or obstructs an inspector or honorary officer in the exercise or performance of his powers or duties in terms of this Act; or

(b) fails to answer or to answer fully and satisfactorily or gives any answer which is false or which he does not reasonably believe to be true to any question which he may lawfully be required to answer in terms of this Act;

shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

28. ***

[subsection repealed by section 4 of Act 22 of 2001]

29. Regulations

(1) The Minister may prescribe by regulation all matters which by this Act are required or permitted to be prescribed or which, in his opinion, are necessary or convenient to be prescribed for carrying out or giving effect to this Act.

(2) Regulations made in terms of subsection (1) may provide for—

(a) forms of application, registration, permits and returns and other forms that may be required for the purposes of this Act;

(b) the general management and administration of declared disease areas, the duties, obligations and measures to be discharged or taken by bee-keepers, including registration, within a declared disease area, the powers and duties of an inspector in a declared disease area and generally any matter or thing necessary, expedient or convenient for the control and eradication of disease in a declared disease area and the prevention of the spread of disease from any such area;

(c) the declaration of quarantine areas and the general management and administration thereof, the duties, obligations and measures to be taken by bee-keepers within a quarantine area, the powers and duties of an inspector for the purpose of quarantine and generally any matter or thing necessary, expedient or convenient to give full effect to quarantine;

(d) the powers and duties of inspectors in relation to bee-keeping;

(e) the classification of apiaries and the inspection thereof;

(f) the regulation, control, restriction or prohibition of the establishment or sitting of apiaries;

(g) the attendance of bee-keepers at hives for the purpose of inspection;

(h) the regulation, control, restriction or prohibition of the exposure to bees of any honeycomb, honey, appliance, receptacle or article on or in which honey is deposited;

(i) the keeping of registers by bee-keepers, the information to be recorded therein and the provision by bee-keepers of information on request;

(j) the regulation, control, restriction or prohibition of the sale or disposal of queen bees, nuclei and royal jelly from apiaries in which queen bees are specially bred for sale;

(k) the keeping of records of costs, charges and expenses incurred or caused to be incurred by an inspector which are, or are likely to be, recoverable as a debt. and the manner in which such records shall be kept.

(3) Regulations made in terms of subsection (1) may provide penalties for any breach thereof, but no such penalty shall exceed a fine of level three or imprisonment for a period of one month or both such fine and such imprisonment.

[subsection substituted by section 4 of Act 22 of 2001]